Record keeping requirements

nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/record-keeping-requirements

Printed: 24 January 2022

Understand the record keeping requirements for people on the strata committee and how an owners corporation executes documents.

Last updated: 27 July 2023

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Annual reporting - how your strata scheme can get started

Owners corporations need to provide key information annually.

Check out our tips and tools to make reporting easier for strata schemes.

Find out more (https://www.nsw.gov.au/housing-and-construction/strata/annual-reporting)

Key information

- The **strata roll (#strata-roll)** must be kept up to date, records showing the changes must be kept for seven years.
- **Financial records (#financial-records)**, including receipts, invoices, bank statements and a record of levies, must be kept for seven years.
- **Communication (#communication-records)** sent and received by the owners corporation and strata committee, such as emails, documents and meeting minutes, signed contracts etc, must be kept for seven years.
- Current or potential owners can ask to see your records at any time for a fee.
- Records can be kept physically or electronically.

What records need to be kept?

You will need to keep the following records for the strata scheme:

- the strata roll
- financial records, including receipts, invoices, bank statements and a record of levies
- copies of communication sent and received by the owners corporation and strata committee, including:
    - email and letters
    - documents from meetings, such as notices and minutes, details of votes and motions
    - signed contracts with strata agents or building managers, and the work they are to do.

If you are new to the strata committee, you can contact the strata manager or previous strata committee secretary to understand where and how they have kept records.

Strata roll

What is a strata roll?

A strata roll is a list of the owners in a strata scheme. It must be kept for the whole time the scheme is running.

It must include:

- the strata plan number and address of the scheme
- each owner's name, address and contact details (such as an email address)
- how each owner owns their lot (for example, whether owned outright or through mortgage)
- the date the owner gained possession of the lot
- if the owner has an agent, the agent's name, address and contact details
- if the owner has a tenant, the tenant's name, contact details and date the tenancy started
- the name and address of the original building owner (usually the developer)
- the name and address of the strata manager (if there is one)
- the total number of unit entitlements for the scheme as a whole, and the unit entitlement assigned to each property within the scheme
- insurance details
- all by-laws.

What's my strata plan number?

The strata plan number is unique to your scheme and is created when your strata plan is registered with NSW Land Registry Services.

Your strata plan number will be written on your strata plan. It may also be on levy notices, communications from your strata manager, meeting agendas and minutes.

If you are not sure of your strata plan number, use our
Strata search. (https://www.nsw.gov.au/housing-and-construction/strata/strata-search)

Keeping your strata roll up to date

The strata roll needs to be kept up to date, so you should check it often. It is the secretary's responsibility to keep the roll up to date. If there is a strata manager, they may do this instead.

You should update the owner and resident details whenever a resident moves in or out, or when a property is bought or sold. New owners and landlords are required to give these details to the secretary, usually within 14 days of the change.

You should also review the strata roll after every meeting of the owners corporation.

Meeting details will be recorded in the minutes of the meeting.

It may be a good idea to set yourself reminders to check that the strata roll is up to date.

Who can request to see the strata roll

A current or potential owner can ask to see the strata roll at any time. They can do this by contacting the secretary of the owners corporation or strata manager.

How to show the strata roll to others (#provide-records)

Financial records

The strata committee is responsible for making and keeping all financial records. This is done by the treasurer or the strata manager.

You must keep all financial records and statements for at least seven years. These include:

- financial statements for the funds in the scheme (including key financial statements)
- receipts and invoices, numbered in the order you got them (for example stationery receipts or cleaning services)
- financial statements showing deposits and withdrawals from the owners corporation accounts
- a cash book (used to record details of cash payments)
- a record of all levies paid by owners.

How to keep your financial records up to date

You must record every time you use strata money to pay for something.

You should check your financial records regularly to make sure they are up to date.

You may also wish to consider:

- whether to keep records electronically (such as in a computer folder) or to keep physical copies in a folder, as long as the records are safeguarded and can be provided as needed
- grouping records by financial year (1 July to 30 June). You may wish to start a new folder each year on 1 July for the new financial year.

Financial statements

You must prepare a ‘key financial statement’ for your funds every year. This is a short, summary document that shows the state of the funds.

The key financial statement must be sent to owners with the notice of the annual general meeting (AGM).

You can find templates for these statements here:

Capital works fund and administrative fund

The statement of key financial information for an administrative fund or capital works fund must be in the form approved. (DOCX 47.42KB) (https://www.nsw.gov.au/sites/default/files/2022-03/Statement-of-Key-Financial-Information-Capital-works-fund-and-administrative-fund.docx)

Other funds

The statement of key financial information for any other fund must be in the form approved by the NSW Government. (DOCX 43.56KB) (https://www.nsw.gov.au/sites/default/files/2022-03/Statement-of-Key-Financial-Information-Other-funds.docx)

You must also create a full financial statement every year for the administrative fund, capital works fund, and any other funds you may have set up. This will be reviewed and voted on at the AGM.

The financial statements show the full details of income and past expenses.

For the administrative and capital works funds, they must include:

- what fund it is for, and what time period it covers
- the balance carried over from the previous period
- the amount of each incoming payment to the fund and details on what it was for
- the amount of each expense going out of the fund and details on what it was for
- the amount of each levy payment owners were required to make
- the outstanding balance of each levy payment
- the amount of cash in the fund
- the balance of the fund
- any unpaid levies or outstanding payments
- the amount of the fund's overall debit or credit

For any other fund, the financial statement must include:

- what fund it is for, and what time period it covers
- the balance carried over from the previous period
- the amount of each incoming payment to the fund and details on what it was for
- the amount of each expense going out of the fund and details on what it was for
- the amount of cash in the fund
- the balance of the fund
- the amount of the fund's overall debit or credit

Receipts and invoices

If you use strata money to pay for something (like a painter, cleaner, stationery or furnishings), or if someone pays money to the owners corporation (for example, for a service like preparing records) you must keep copies of all invoices and receipts.

If issuing a receipt, it must include:

- a number for the receipt (based on how many you've issued. For example, the first receipt issued in the year may be number one)
- the date of issue
- the amount of money received
- how the money was paid (cash, cheque, credit card, bank transfer etc.)
- the name of the person who the payment is for (either the person paying or, if made on behalf of another person, the name of that other person)

details of what the payment is for (if it's not for a strata levy).

If the payment is for a strata levy, it must also include:

which fund the payment is for
the property that the payment is for
the levy period that the payment is for
if any discounts have been given, details of the discount.

Transaction statements

You will need to have a statement of all money going into and out of the strata scheme's funds.

These statements will show any money paid into the account (such as levies) and any money paid out of the account (such as for stationery).

These should cover a 12 month period or, if the AGM is held earlier, then for the period until that AGM.

Cash book

If you pay for anything for the scheme in cash, or get any cash for the scheme, you must keep a specific record of the amount of cash going in or out, and what it was for.

Keep copies of all receipts or invoices for the cash payment.

Record of levies

When you charge owners levies, keep a book or spreadsheet showing every lot (that is not a utility lot). For each lot, the document should record:

the amount to be paid
the date payment is due
which fund it is for and what period it covers
the amount of each payment made towards the fee
the date each payment was made
how the payment was made (e.g. cash, bank transfer, etc.)
whether the amount received is the total payment or only part payment
details of discounts given for early payment (if any)
the balance remaining.

What about the first year?

Start keeping records from the first annual general meeting (AGM) to the end of that financial year.

Before the first AGM, the original owner of the scheme (usually the developer) keeps all the financial records.

At the first AGM, the original owner must give their financial records to the owners corporation.

Who can request to see the financial records?

A current or potential owner can ask to see the financial records at any time. They can do so by contacting the secretary of the owners corporation or strata managing agent.

Communication records

You must keep a record of all communications sent and received by the strata committee and owners corporation for seven years.

Communications are anything written to or by the strata committee.

Examples include:

- letters
- emails
- reports
- contracts with strata agents or building managers
- documents from meetings

Usually, the secretary manages all communications.

What records are kept from meetings?

Whenever the owners corporation or strata committee holds a meeting, you will need to keep a number of documents.

These include:

- a copy of the meeting agenda
- a copy of the meeting minutes
- details of any motions that were talked about
- details and results of any votes

If the meeting is an annual general meeting, you will also need to keep:

- copies of the financial statements for:
  - the administrative fund
  - the capital works fund
  - any other fund opened by the owners corporation, and
  - any auditor's report
- the 10-year capital works fund plan
- details of the insurance taken out by the owners corporation

A good rule to follow is if a document is made for a meeting, or discussed at a meeting, you should keep it for your records.

Learn more about how to hold strata meetings (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/how-to-run-a-strata-meeting).

What about secret ballots?

You must keep a record of the result of secret ballots, but you must not include the names of voters.

Secret ballots only need to be kept for 13 months.

Learn more about strata meetings

Understand the steps for running strata meetings, and the documents you'll need.

Learn what to do before, during, and after a meeting, how to set an agenda and how voting works.

Learn more (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/how-to-run-a-strata-meeting)

How to keep your communications up to date

You can keep communications records electronically (such as in a computer or cloud folder), or you can keep physical copies in a folder, as long as you can provide them when asked.

If you get any communications physically (for example in the post), file them away, or scan them to save electronically. Before sending any physical communications, make a photocopy for your records.

For any email communications, make sure that your email is set up to save your communications, or that you have another folder set up for this. You will need to make sure that you can save your emails in this way for seven years.

If you send or get any other electronic documents, make sure that you save them in a computer or cloud folder, or print them out to save in a physical folder.

As there can be a lot of communications to and from the strata committee, it is best to regularly file communications so that you do not fall behind. You should check your communications records are up to date on a regular basis.

Who can request to see the communications?

A current owner can ask to inspect strata records, including communication records. They can do so by contacting the strata committee secretary or strata manager and will need to pay a fee.

Secret ballots from meetings are different. Secret ballots must not be given to others, unless ordered by the NSW Civil and Administrative Tribunal or a court.

How to provide records to others

Current owners can ask to see the strata roll, financial records and other records at any time by contacting the secretary on the strata committee or strata manager.

Potential owners (or a strata searcher they have hired) may ask to inspect a strata scheme's records. This request may come via the real estate agent selling the property.

When you get a request, you must arrange to let the current or potential owner see your records within 10 days. You can give the records to them in person, electronically or in any other agreed way.

If meeting in person, agree with the current or potential owner a date, place, and time to see the records.

If you can't agree on a time and place within three days, the owners corporation can set a date, place, and time by giving notice in writing.

The person who is inspecting the strata documents can make copies of the documents, but you must not take the originals without the permission of the owners corporation.

Costs

The owner must pay the owners corporation a fee for the work needed to prepare the records.

The fee is $31 for the first hour, and $16 for each extra half-hour that it takes to prepare the roll. You cannot change the fee amount.

The owners corporation must put this fee into their administrative fund.

Executing documents

Owners corporations give formal approval to documents by physically affixing the owners corporation's seal.

From 30 September 2022, the seal can be kept in electronic form and affixed to documents electronically. Owners can also continue to use the physical seal to execute documents.

There may be different technologies that strata schemes can use for an electronic seal. For example, a scheme may choose to use an electronic scan of the physical seal or a digital version of the physical seal. One consideration when making a choice may be the security features of the technology.

Who can keep the seal?

The persons who can keep an owners corporation's seal, whether in physical or electronic form, vary on the size of the scheme and what the scheme decides. View further detail in the **Strata Sc**

hemes Management Act 2015 (https://legislation.nsw.gov.au/view/html/inforce/current/act-2015-050#sec.272).

How is the seal affixed?

For requirements for affixing the seal electronically or physically please view the Strata Schemes Management Act 2015 (https://legislation.nsw.gov.au/view/html/inforce/current/act-2015-050#sec.273) and clauses 17A and 17B of the Strata Schemes Management Regulation 2016 (https://legislation.nsw.gov.au/view/html/inforce/current/sl-2016-0501#sec.17A).

Need more help?

Contact Fair Trading

If you have any further questions about strata, you can contact Fair Trading via phone or in-person at a Service NSW centre.

Phone:13 32 20 (https://www.nsw.gov.au/tel:13 32 20)8:30am to 5pm, Monday-Friday

In person:Find your nearest Service NSW Centre (https://www.service.nsw.gov.au/service-centre).

Related information

Popular pages

How to run a strata meeting (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/how-to-run-a-strata-meeting)

There are set steps for running strata meetings, making sure every eligible person can have their say.

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Who's who in strata (https://www.nsw.gov.au/housing-and-construction/strata/roles)

Understand the roles of the owners corporation and strata committee, strata manager and building manager.

→

Buying into strata (https://www.nsw.gov.au/housing-and-construction/strata/buying-a-strata-property)

What you need to know, and advice to consider, when buying a strata property.

→

Appointing strata managers and other workers (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/strata-manager-and-other-workers)

Strata managers and building managers help with the day-to-day running of a strata scheme. How to appoint and remove strata and building managers.

Helpful links

- **NSW Land Registry Services (https://www.nswlrs.com.au/)**

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Sign up to the Strata and community scheme updates newsletter (https://www.fairtrading.nsw.gov.au/subscribe)